

1 AN ACT relating to state parks.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 148.021 is amended to read as follows:

- 4 (1) The Department of Parks shall exercise all administrative functions of the state
5 relating to the operation of state parks, shrines, monuments, and museums except
6 those allocated to the historical society.
- 7 (2) The department may request acquisition, subject to the provisions of KRS Chapters
8 42, 45, 45A, 56, and the provisions made in this chapter, of lands by purchase,
9 lease, or otherwise, on which to operate state parks.
- 10 (3) The department may improve said parks by constructing and equipping
11 improvements or facilities in said parks.
- 12 (4) The department may operate said parks, fix fees and charges for the use of said
13 parks and the improvements and facilities constructed therein, and provide for the
14 collection of said fees and charges and the proper accounting therefor, except that:
- 15 (a) The department shall not impose boat launching fees at any boat ramp over
16 which it has authority and control;~~and~~
- 17 (b) The department shall not allow, grant permission to, or permit any individual,
18 sole proprietorship, partnership, corporation, limited liability company, or
19 other form of business arrangement to which the department has granted a
20 rental or leasehold interest or has engaged to manage or operate facilities that
21 include a public boat launching ramp, to charge a boat launching fee at any
22 boat ramp; **and**
- 23 **(c) 1. The department shall not impose on graduates of the PGA HOPE**
24 **program any green fees or associated golf rates except fees for golf**
25 **cart rental.**
- 26 **2. To claim the fee and rate exemption provided by this paragraph, a**
27 **PGA HOPE graduate shall present his or her valid PGA HOPE**

1 graduate card at the time of purchase, and the exemption shall extend
2 to the PGA graduate and one (1) guest.

3 3. As used in this paragraph, "PGA HOPE program" means the Helping
4 Our Patriots Everywhere program established by the Professional
5 Golfers' Association of America's Reach Foundation, which
6 introduces and teaches golf to veterans and active-duty military to
7 enhance their physical, mental, social, and emotional well-being.

8 (5) The Department of Parks is authorized to enter into any agreement with the Breaks
9 Interstate Park Commission for the operation of any facilities in the Breaks
10 Interstate Park.

11 (6) The Department of Parks is authorized to accept, for deposit in a trust and agency
12 fund account in accordance with KRS 45.253, on behalf of the state any grant or
13 contribution, federal or otherwise, to assist in meeting the cost of carrying out the
14 functions assigned to the Department of Parks.

15 (7) Notwithstanding any provision in KRS Chapter 41, 45, 45A, or 47 to the contrary,
16 there may be established separate cash funds and depositories at each state park
17 from which immediate payment of refunds may be made to a patron or guest of
18 such state park of any unearned money advanced or paid by such guest or patron.
19 The department may accept from a guest or patron an amount which includes the
20 fee for the service rendered plus a gratuity for the waitress or other designated
21 person and remit the gratuity directly from the depository or cash fund to the
22 designated recipient thereof. Such funds or depositories shall be governed by
23 regulations established by the Department of Parks and approved by the Finance
24 and Administration Cabinet.

25 (8) The commissioner may promulgate administrative regulations in accordance with
26 provisions of KRS Chapter 13A in order to carry out the provisions of this section.